THIS DOCUMENT PREPARED
BY, AND AFTER RECORDING
RETURN TO:

Janet M. Johnson
Schiff Hardin LLP
6600 Sears Tower
233 South Wacker Drive
Chicago, Illinois 60606

This space reserved for Recorder's use only.

SHORT FORM AND MEMORANDUM OF GROUND LEASE

This Short Form and Memorandum of Ground Lease ("**Short Form of Lease**") is made as of December 1, 2007, by and between **CHICAGO TITLE LAND TRUST COMPANY**, not personally, but solely as Trustee under Trust Agreement dated as of December 1, 2007, and known as Trust No. 1114334, as Lessor, and **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company, as Lessee.

1. **Leased Premises**. Upon and subject to the terms and conditions of that certain Ground Lease for Real Estate Parcel EC-2C dated as of December 1, 2007 ("**Lease**"), by and between Lessor and Lessee, to which reference is hereby made for the full terms and conditions thereof, Lessor has demised and leased and hereby demises and leases to Lessee, and Lessee has taken and hired and hereby takes and hires from Lessor, that certain tract of land located in unincorporated Cook County, Illinois legally described in Exhibit A attached hereto and made a part hereof, subject to the Permitted Exceptions ("**Premises**"). The Premises are depicted on the reduced copy of the Plat of Survey prepared by V_3 Consultants Ltd., dated October 25, 2007 attached hereto as Exhibit B.

2. **Lease Term**. The Term of the Lease is for sixty (60) years, seven (7) months and four (4) days, commencing on January 28, 2008, and ending on August 31, 2068, unless sooner terminated on a date ("**Termination Date**") in the manner and as provided in the Lease.

3. **Other Lease Provisions**. Among the other terms and conditions contained in the Lease, the Lease provides:

(a) At all times during the Term of the Lease, the Premises shall be used by Lessee and any other occupant, including Tenants, for the Permitted Use specified in the Lease.

(b) Lessee has covenanted to construct and develop on the Premises to be completed consistent with Final Plans and Specifications to be approved by Lessor as contemplated in the Lease (which building, or buildings, together with any renewals or

replacements thereof, additions thereto and substitutions therefor are herein referred to as the "**Building**" or "**Buildings**"), and all other on-site and off-site improvements appurtenant thereto or required in connection therewith (which Building or Buildings and all other improvements, including any Added Components, together with any renewals or replacements thereof, Changes and Alterations or Major Changes thereto, additions thereto and substitutions therefor are herein referred to as the "**Improvements**") in accordance with certain site plans, architectural renderings and other Submittals approved by Lessor in accordance with the provisions of the Lease.

(c) Lessee shall, upon the Expiration Date or the Termination Date, whichever shall first occur, surrender the Premises to Lessor in good order, condition and repair (except for ordinary wear and tear and for such damage by Casualty or taking by a Condemnation Proceeding that, in either case, Lessee is not required under the terms of the Lease to restore or repair, in which case the condition upon surrender shall be as provided elsewhere in the Lease), free and clear of all tenancies and occupancies (other than those specifically permitted by the Lease) and free of all liens, encumbrances or restrictions other than those permitted pursuant to the Lease, including, without limitation, any Tenant Leases permitted pursuant to Section 9.2 of the Lease for which Lessor has entered into Non-Disturbance Agreements and whose Tenant Lease terms have not yet expired) and free of all liens, encumbrances or restrictions other than those set forth in Exhibit B attached to the Lease, except that for purposes of such surrender no liens, encumbrances or restrictions created or suffered by Lessee shall be permitted unless the same have been specifically joined in by Lessor during the Term of this Lease as exceptions binding on Lessor's Estate upon the expiration or termination of this Lease. Notwithstanding the foregoing, if the Lease is terminated prior to the Expiration Date or the Termination Date, by agreement, by reason of an Event of Default by Lessee or otherwise pursuant to its terms, Lessee shall not be obligated to evict or otherwise cause any Tenant whose Tenant Lease has not yet expired or been terminated by Lessee to vacate the portion of the Premises leased to such Tenant. However, nothing contained in the foregoing sentence or in any Non-Disturbance Agreement entered into by Lessor with any Tenant or in any Tenant Lease shall be construed as an agreement on the part of Lessor to accept the tenancy of any Tenant whose Tenant Lease term expired prior to the expiration of the Term of the Lease or as to which Lessor has not entered into any Non-Disturbance Agreement.

(d) At all times during the Term of this Lease, the Buildings and all other Improvements comprising the Project (exclusive of water, sanitary sewer or storm sewer trunk lines, mains and laterals and other Off-Site Improvements, On-Site Improvements or Public Improvements to be dedicated to and accepted by any Governmental Authority, title to which shall remain in Lessor or Lessee, depending on which party constructs them, but only until accepted by such Governmental Authority), the Buildings and all other Improvements comprising the Project (which may consist of a separate Building or Buildings or other Improvements constructed by a Tenant under a Tenant Lease) shall, whether or not affixed to the Land, be and remain the property of Lessee or the Tenant constructing the same pursuant to a Tenant Lease (depending on the terms of the Tenant Lease), subject always to the terms of the Lease or such Tenant's Tenant Lease. Notwithstanding the foregoing, upon the first to occur of the Expiration

Date or the Termination Date, if earlier, title to the Buildings and all other Improvements (including any On-Site Improvements, Off-Site Improvements or Public Improvements constructed by Lessee at any time during the Term and not previously dedicated to and accepted by any Governmental Authority and all Tenant-owned Buildings or other Improvements) shall automatically vest in the then Lessor without any act or the recording of any instrument on the part of Lessor or Lessee or any Tenant.

(e) Prior to completion of the Building and other Improvements requested to be constructed by Lessee pursuant to Article 5 of the Lease as part of the Initial Project, neither the Lease nor the leasehold estate thereby created shall under any circumstance, whether voluntary or involuntary, or by operation of law, be assigned or transferred by Lessee without in each case first obtaining the prior written consent of Lessor (except as otherwise provided in paragraph 3(f) of this Short Form of Lease or in Section 9.1.1 of the Lease with respect to certain assignments and transfers to a Permitted Assignee or by assignment or transfer in lieu of foreclosure of any such Leasehold Mortgage), and as otherwise provided in the Lease. After the Initial Project has been completed in accordance with the provisions of Article 5 and Article 9 of the Lease, the consent of Lessor to an assignment or transfer of the Lease and the leasehold estate created thereby shall not be required, except in certain limited circumstances as set forth in the Lease, but the initial Lessee named in this Short Form of Lease shall not be released from its obligations under the Lease except as provided in Section 9.1.3 of the Lease.

(f) The making of a Leasehold Mortgage shall not be deemed to constitute an assignment or transfer of the Lease or the leasehold estate created thereby, nor shall any Leasehold Mortgagee (as defined in the Lease), as such, be deemed an assignee or transferee of the Lease or of the leasehold estate created thereby so as to require the Leasehold Mortgagee, as such, to assume the performance of any of the terms, conditions, agreements and obligations on the part of Lessee to be performed or met thereunder. In addition, any sale of Lessee's interest in the Lease and of the leasehold estate created thereby in any proceedings for the foreclosure of any Leasehold Mortgage, or the assignment or transfer of the Lease and of the leasehold estate created thereby under any instrument of assignment or transfer in lieu of the foreclosure of any Leasehold Mortgage, shall not deemed to be an assignment or transfer within the meaning of paragraph 3(e) of this Short Form of Lease or Sections 9.1.2 or 9.1.3 of the Lease for which Lessor's consent shall be required, but the assignee or transferee in any such assignment or transfer shall be deemed to have assumed the performance of all of the terms, covenants, conditions, agreements and obligations on the part of Lessee to be performed thereunder from and after the date on which the Leasehold Mortgagee or someone claiming by, through or under the Leasehold has succeeded to Lessee's rights created pursuant to the Lease.

4. **Capitalized Terms**. All capitalized terms not defined in this Short Form of Lease shall have the meanings given to them in the Lease. To the extent of any conflict between this Short Form of Lease and the terms of the Lease, the Lease shall control.

5. **No Merger**. The fee title of Lessor in and to the Land and Lessee's leasehold estate in the Premises and ownership of the Improvements shall not merge but shall always be kept separate and distinct, notwithstanding the fact that the same Person may acquire, own or hold, directly or indirectly, such estates or interests, whether by purchase or otherwise. No such merger shall occur unless and until Lessor, Lessee, each Leasehold Mortgagee, each Fee Mortgagee, and all other Persons holding (i) the rights and interests created by this Lease, (ii) the ownership, leasehold or other rights or interests in all Improvements and all of the Premises, and (iii) any lien on any of the foregoing as a Mortgagee shall join in a written instrument expressly effecting such merger.

6. **Trustee Exculpation**. This Short Form of Lease is executed by CHICAGO TITLE LAND TRUST COMPANY, not personally, but solely as Trustee under a Trust Agreement dated December 1, 2007, and known as Trust No. 1114334, solely in the exercise of the power and authority conferred upon and vested in said Trustee in its capacity as such Trustee (and said Trustee hereby warrants that it possesses full power and authority to execute this instrument), and it is expressly understood and agreed that nothing contained in this Short Form of Lease or the Lease shall be construed as creating any liability whatsoever against said Trustee personally and in particular, without limiting the generality of the foregoing, there shall be no personal liability to comply with the terms of this Short Form of Lease or the Lease, to pay any indebtedness accruing hereunder or thereunder or to perform any covenant, either express or implied, herein or therein contained, or to keep, preserve or sequester any property of said Trust, and that all personal liability of said Trustee of every sort, if any, is hereby expressly waived by every person now or hereafter claiming any right or security under this Short Form of Lease or the Lease; and that so far as said Trustee is concerned the owner of any indebtedness or liability accruing hereunder or thereunder shall look solely to the Premises leased pursuant to this Short Form of Lease and the Lease, or the Project, for the payment thereof. It is further understood and agreed that said Trustee has no agents or employees and merely holds naked title to the Premises described in this Short Form of Lease and the Lease; that said Trustee has no control over, or under this Short Form of Lease or the Lease, and assumes no responsibility for (a) the management or control of such Premises or the Project, (b) the upkeep, inspection, maintenance or repair of such Premises or the Project, (c) the collection of rents or rental from such Premises or the Project, or (d) the conduct of any business which is carried on upon such Premises or the Project. It is hereby agreed that said Trustee shall be permitted to attach the form of exculpation customarily used by it to all documents, agreements, instruments, or other writings executed by it.

[Signature Pages Follow]

WITNESS the due execution of this Short Form of Lease by Lessor as of the day and year first above written.

LESSOR:

CHICAGO TITLE LAND TRUST COMPANY, not personally but as Trustee, as aforesaid

COPY

By: _____
Printed Name: GLEN J. RICHTER
Its: TRUST OFFICER

ACKNOWLEDGMENT

STATE OF ILLINOIS)
) SS.
COUNTY OF COOK)

GLEN J. RICHTER, the TRUST OFFICER ~~President~~ of **CHICAGO TITLE LAND TRUST COMPANY**, not personally, but solely as Trustee under a Trust Agreement dated December 1, 2007, and known as Trust No. 1114334, who is personally known to me to be the same person whose name is subscribed to the foregoing instrument as such TRUST OFFICER ~~President~~, appeared before me this day in person and acknowledged that he/she signed and delivered said instrument as his/her own free and voluntary act and as the free and voluntary act of said Bank, as Trustee as aforesaid, for the uses and purposes therein set forth.

GIVEN under my hand and notarial seal, this 19th day of December, 2007

Grace Marin
Notary Public

My commission expires:

3/9/2009

"OFFICIAL SEAL"
GRACE MARIN
NOTARY PUBLIC STATE OF ILLINOIS
My Commission Expires 03/09/2009

WITNESS the due execution of this Short Form of Lease by Lessee as of the day and year first above written.

LESSEE:

NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company

By: Wilmette Hockey Association, Inc., an Illinois not-for-profit corporation, sole member

COPY

By: B. Roth
Printed Name: ALAN B ROTH
Its: VP

Attest:
Printed Name:
Title:

ACKNOWLEDGMENT

STATE OF ILLINOIS)
) SS.
COUNTY OF Cook)

This instrument was acknowledged before me on December 20, 2007, by Alan B Roth and _____ as the Vice Pres and _____, respectively, of Wilmette Hockey Association, Inc., an Illinois not-for-profit corporation, sole member of **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company.

Josephine S Simon
Notary Public

My commission expires:

"OFFICIAL SEAL"
JOSEPHINE SIMON
Notary Public, State of Illinois
My Commission Expires May 1, 2010

Exhibit A

Legal Description of the Premises

EC-2C

PART OF LOT EC-2 IN TECHNY PARCELS EC-1 AND EC-2, BEING A SUBDIVISION OF PART OF THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12 EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844049 DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE (5) COURSES AND DISTANCES: 1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77 FEET; 2) NORTH 89 DEGREES 55 MINUTES 05 SECONDS WEST, 211.02 FEET; 3) NORTH 26 DEGREES 54 MINUTES 49 SECONDS WEST, 102.88 FEET; 4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET; 5) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 687.48 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING THREE (3) COURSES AND DISTANCES: 1) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 36.58 FEET; 2) NORTH 42 DEGREES 59 MINUTES 46 SECONDS WEST, 402.42 FEET; 3) NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 594.75 FEET TO THE EASTERLY LINE OF SAID LOT EC-2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO (2) COURSES AND DISTANCES: 1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; 2) ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2540.00 FEET, HAVING A CHORD BEARING OF SOUTH 36 DEGREES 00 MINUTES 59 SECONDS EAST, 112.94 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS.

PIN: 04-14-305-001-0000 (portion only)

Address: 5.0± acres of vacant land on Founders Drive, north of Kamp Drive and south of Techny Road, Northbrook, Illinois.

Exhibit B

Depiction of Premises

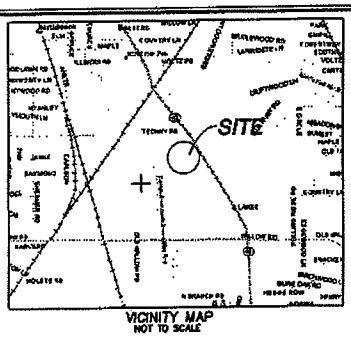
[See Attached]

CH1\5360029.3

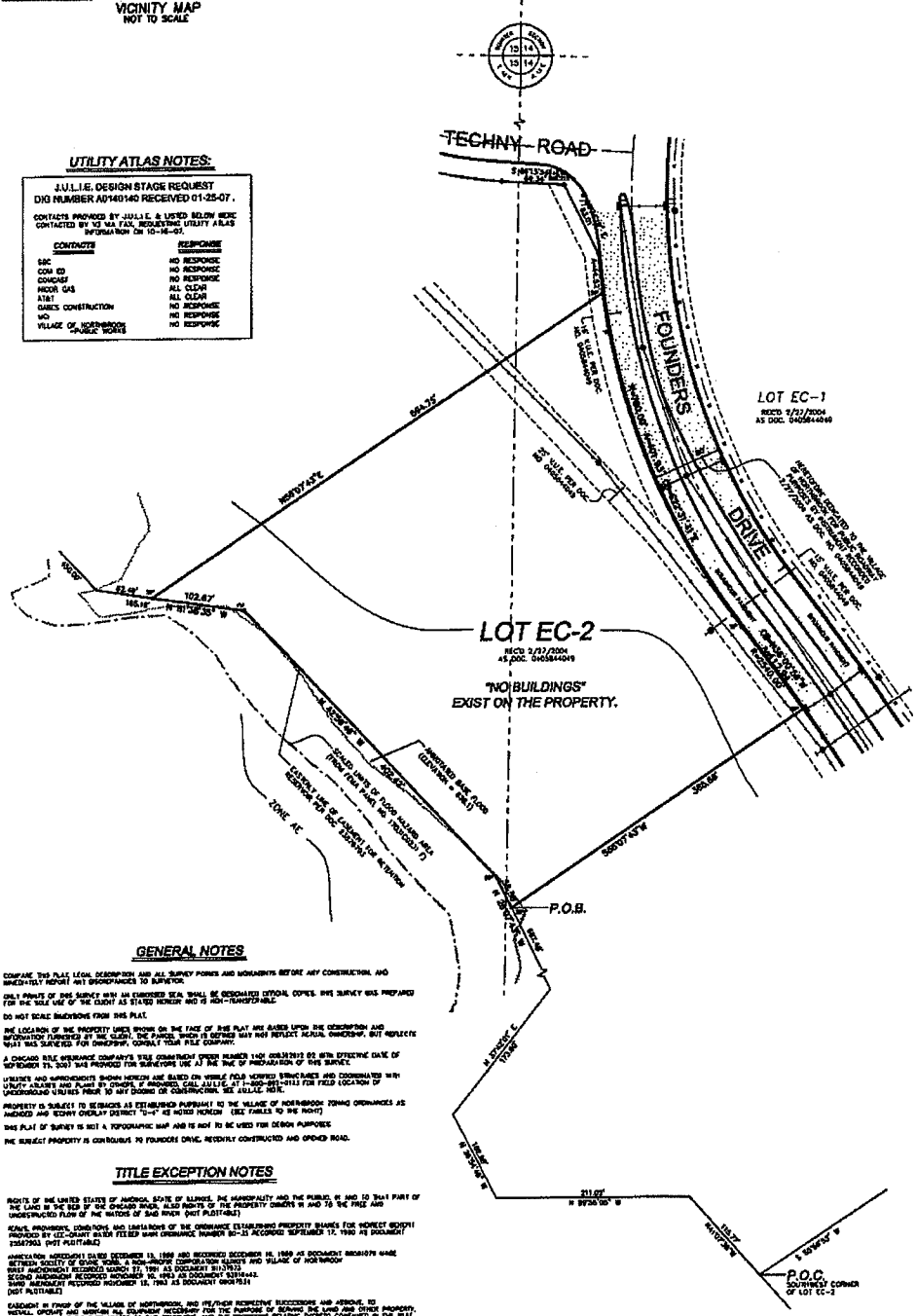
ALTA/ACSM LAND TITLE SURVEY
OF
PART OF TECHNY LOT EC-2
NORTHBROOK, ILLINOIS

THAT PART OF LOT EC-2 IN THE TECHNY PARCELS EC-1 AND EC-2, BEING A SUBDIVISION OF PART OF THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12 EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844049, DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE (5) COURSES AND DISTANCES: 1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77 FEET; 2) NORTH 89 DEGREES 56 MINUTES 05 SECONDS WEST, 211.02 FEET; 3) NORTH 28 DEGREES 04 MINUTES 49 SECONDS WEST, 102.58 FEET; 4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET; 5) THENCE NORTH 28 DEGREES 07 MINUTES 43 SECONDS WEST, 887.49 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING THREE (3) COURSES AND DISTANCES: 1) NORTH 28 DEGREES 07 MINUTES 43 SECONDS WEST, 36.56 FEET; 2) THENCE NORTH 42 DEGREES 59 MINUTES 48 SECONDS WEST, 402.42 FEET; 3) THENCE NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 814.75 FEET TO THE EASTERLY LINE OF SAID LOT EC-2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO (2) COURSES AND DISTANCES: 1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; 2) THENCE ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2340.00 FEET, HAVING A CHORD BEARING OF SOUTH 38 DEGREES 00 MINUTES 58 SECONDS EAST, 112.84 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS



VICINITY MAP
NOT TO SCALE



GRAPHIC SCALE

1" = 50'

BASIS OF BEARINGS

ASSUMED THE SOUTH LINE OF THE NORTHEAST QUARTER OF SECTION 14-42-12 TO BE: S 88° 39' 41" E

AREA

217,805 SQ. FT.
5.0001 ACRES

FLOOD HAZARD NOTE

PART OF THE PROPERTY IS IN AREA DETERMINED TO BE OUTSIDE OF 500-YEAR FLOODPLAIN (ZONE X) AND PART OF THE PROPERTY IS IN A SPECIAL FLOOD HAZARD AREA (ZONE AE) ACCORDING TO THE FEDERAL EMERGENCY MANAGEMENT AGENCY AS SHOWN ON FIRM MAP COMMUNITY PANEL NO. 17031 C0231 F EFFECTIVE DATE NOVEMBER 6, 2000

UTILITY ATLAS NOTES:

J.U.L.I.E. DESIGN STAGE REQUEST
DIG NUMBER A0140140 RECEIVED 01-25-07.

CONTACTS PROVIDED BY J.U.L.I.E. & LISTED BELOW WERE CONTACTED BY V3 VIA FAX, REQUESTING UTILITY ATLAS INFORMATION ON 10-16-07.

CONTACTS	RESPONSE
SBC	NO RESPONSE
COM ED	NO RESPONSE
COMCAST	NO RESPONSE
NICOR GAS	ALL CLEAR
AT&T	ALL CLEAR
GABES CONSTRUCTION	NO RESPONSE
WO	NO RESPONSE
VILLAGE OF NORTHBROOK PUBLIC WORKS	NO RESPONSE

LEGEND

ABBREVIATIONS

GENERAL NOTES

1. COMPARE THIS PLAT LEGAL DESCRIPTION AND ALL SURVEY POINTS AND MONUMENTS BEFORE ANY CONSTRUCTION, AND IMMEDIATELY REPORT ANY DISCREPANCIES TO SURVEYOR.
2. ONLY PRINTS OF THIS SURVEY WITH AN EMBOSSED SEAL SHALL BE CONSIDERED OFFICIAL COPIES. THIS SURVEY WAS PREPARED FOR THE SOLE USE OF THE CLIENT AS STATED HEREON AND IS NON-TRANSFERABLE.
3. DO NOT SCALE DIMENSIONS FROM THIS PLAT.
4. THE LOCATIONS OF UTILITIES SHOWN ON THE FACE OF THIS PLAT ARE BASED UPON THE DESCRIPTION AND INFORMATION FURNISHED BY THE CLIENT. THE PARCEL WHICH IS DEPICTED MAY NOT REFLECT ACTUAL OWNERSHIP, BUT REFLECTS WHAT WAS SURVEYED FOR OWNERSHIP, CONSULT YOUR TITLE COMPANY.
5. A CHICAGO TITLE INSURANCE COMPANY TITLE COMMITMENT ORDER NUMBER 1401 0083812012 02 WITH EFFECTIVE DATE OF NOVEMBER 15, 2007 WAS PROVIDED FOR SURVEYORS USE AT THE TIME OF PREPARATION OF THIS SURVEY.
6. UTILITIES AND IMPROVEMENTS SHOWN HEREON ARE BASED ON VISIBLE FIELD VERIFIED STRUCTURES AND COORDINATED WITH UTILITY ATLASES AND PLANS BY OTHERS, IF AVAILABLE. CALL J.U.L.I.E. AT 1-800-892-0123 FOR FIELD LOCATION OF UNDERGROUND UTILITIES PRIOR TO ANY DIGGING OR CONSTRUCTION. SEE J.U.L.I.E. NOTE.
7. PROPERTY IS SUBJECT TO SETBACKS AS ESTABLISHED PURSUANT TO THE VILLAGE OF NORTHBROOK ZONING ORDINANCES AS AMENDED AND TECHNY OVERLAY DISTRICT "O-4" AS NOTED HEREON (SEE PARCEL TO THE RIGHT)
8. THIS PLAT OF SURVEY IS NOT A TOPOGRAPHIC MAP AND IS NOT TO BE USED FOR DESIGN PURPOSES.
9. THE SUBJECT PROPERTY IS CONTIGUOUS TO FOUNDERS DRIVE, RECENTLY CONSTRUCTED AND OPENED ROAD.

TITLE EXCEPTION NOTES

F. RIGHTS OF THE UNITED STATES OF AMERICA, STATE OF ILLINOIS, THE MUNICIPALITY AND THE PUBLIC, IN AND TO THAT PART OF THE LAND IN THE BED OF THE CHICAGO RIVER, ALSO RIGHTS OF THE PROPERTY OWNERS IN AND TO THE FREE AND UNOBSTRUCTED FLOW OF THE WATERS OF SAID RIVER (NOT PLOTTABLE)

H. TERMS, PROVISIONS, CONDITIONS AND LIMITATIONS OF THE ORDINANCE ESTABLISHING PROPERTY SHARES FOR NORTHBROOK 0010791 PROVIDED BY EEC-SHARE WATER FILED BY MAR ORDINANCE NUMBER 80-25 RECORDED SEPTEMBER 17, 1980 AS DOCUMENT 23687001 (NOT PLOTTABLE)

I. ANNEXATION AGREEMENT DATED DECEMBER 13, 1988 AND RECORDED DECEMBER 14, 1988 AS DOCUMENT 88561079 MADE BETWEEN SOCIETY OF SAINT JOHN, A NON-PROFIT CORPORATION ILLINOIS AND VILLAGE OF NORTHBROOK FIRST AMENDMENT RECORDED MARCH 27, 1991 AS DOCUMENT 91137613
SECOND AMENDMENT RECORDED NOVEMBER 16, 1993 AS DOCUMENT 93394431
THIRD AMENDMENT RECORDED NOVEMBER 18, 1994 AS DOCUMENT 94561531
(NOT PLOTTABLE)

J. EASEMENT IN FAVOR OF THE VILLAGE OF NORTHBROOK, AND ITS/THEIR RESPECTIVE SUCCESSORS AND ASSIGNS, TO INSTALL, OPERATE AND MAINTAIN ALL EQUIPMENT NECESSARY FOR THE PURPOSE OF SERVING THE LAND AND OTHER PROPERTY, TOGETHER WITH THE RIGHT OF ACCESS TO SAID EQUIPMENT, AND THE PROVISIONS RELATING THERETO CONTAINED IN THE PLAT RECORDED FEBRUARY 27, 2004 AS DOCUMENT 0405844049, AFFECTING THE LAND AS FOLLOWS:
A 75 FOOT STRIP AFFECTING THE EAST AND THE NORTHWEST PORTION OF LOT EC-2 (PLOTTED HEREON)

K. PORTIONS OF THE PROPERTY LIE WITHIN THE LIMITS OF THE FLOOD HAZARD AREA, AS INDICATED BY PLAT, PLAT OF SUBDIVISION OF TECHNY PARCELS EC-1 AND EC-2 RECORDED FEBRUARY 27, 2004 AS DOCUMENT 0405844049. (PLOTTED HEREON)

L. DECLARATION ESTABLISHING CONDITIONS, COVENANTS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS EC-1, EC-1, EC-2, AND EC-1 WITHIN THE TECHNY PROPERTY, NORTHBROOK, ILLINOIS AND PROVISIONS FOR THE TECHNY PROPERTY ASSOCIATION RECORDED NOVEMBER 12, 1998 AS DOCUMENT NUMBER 98907531. (NOT PLOTTABLE)

M. THE DEVELOPER HAS RESERVED THE RIGHT TO ADD PROPERTY DEFINED AS PHASE 2-3 TO THE DECLARATION ESTABLISHING CONDITIONS, COVENANTS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS EC-1, EC-1, EC-2 AND EC-1 WITHIN TECHNY PROPERTY, NORTHBROOK, ILLINOIS, AND PROVISIONS FOR THE TECHNY PROPERTY ASSOCIATION RECORDED NOVEMBER 12, 1998 AS DOCUMENT NUMBER 98907531, AND IN THE EVENT OF SUCH ADDITION, TO READJUSTMENT PROPORTIONATE INTERESTS IN THE COMMON ELEMENTS. (NOT PLOTTABLE)

O. PERMANENT AND PERPETUAL EASEMENT IS HEREBY GRANTED TO THE VILLAGE OF NORTHBROOK, ITS SUCCESSORS AND ASSIGNS, TO TOUCH, INSPECT, REPAIR, REPLACE, ALTER, MOVING OR ABANDON IN PLACE WATER MAIN, STORM SEWER, SANITARY SEWER, PUBLIC SIDEWALK, STREET LIGHTING AND DRAINAGE, UPON, UNDER, ALONG AND ACROSS THE AREA DESIGNATED "VILLAGE UTILITY EASEMENT" ON THE PLAT OF SUBDIVISION, ALSO GRANTED HEREBY IS THE RIGHT TO EXIT, FREE OF ROAD TAXES, DUTIES, OVERAGE ETC. AS SHOWN ON PLAT OF "FINAL PLAT OF SUBDIVISION OF TECHNY PARCELS EC-1 AND EC-2 RECORDED AS DOCUMENT 0405844049 (PLOTTED HEREON)

PROPERTY IS ZONED TECHNY OVERLAY DISTRICT "O-4"

9-101 SPECIAL DEVELOPMENT STANDARDS
(As taken from Amendatory Agreement)

A. Bulk, Size, Shape and Yard Requirements.
The bulk, shape and yard requirements contained in the base districts shall apply in the Techny Overlay District except as specifically modified in this Section. The following special bulk, shape and yard requirements shall apply in the Techny Overlay District.

	C-3	O-3	O-4
1. Maximum height:			
a. Feet	75/125*	75	--
b. Stories	5/8*	--	--

* Any part of any building that exceeds 75 feet of that shall be subject to height and the setback of more than 500 feet from the center line of both Waukegan and Willow Roads and 1,000 feet from the point of intersection of said center lines.

2. Minimum Total Lot Area
All uses (square feet) 40,000 150,000 150,000

3. Minimum Setbacks
a. Front: Base District requirement or building height of the setback, whichever is greater (No less than Greenbelt & Techny Road and Founders Drive)
b. Interior Side and Rear: Building height of the setback

4. Minimum Lot Coverage (percent of lot)	50	50	50
5. Maximum Floor Area Ratio			
a. Without TDR*	0.40	0.70	0.30
b. With TDR*	0.45	0.40	0.75

B. Required Parking. All parking spaces or spaces of 9 square feet with required screening in the provisions of Subsection 9-101 F1 (a) of this Code for parking areas constructed pursuant to Subsection 9-103 E, of this Section for a particular parcel to accommodate requirements for the land use or product spaces provided in open space residential open, located within 1000 feet of such dwelling units.

C. Special Perimeter Landscaping Requirements.
Notwithstanding any provisions of this Plat to the contrary, there shall be provided on any property within the Techny Overlay District, a perimeter landscaped open space, generally adjacent to the lot line to a depth of 30 feet, and subject at least 100 feet from the center line of both Waukegan and Washington Roads. Except for the uses mentioned stated herein, the perimeter landscaped open space shall conform to the provisions of Subsection 9-103 of this Code.

D. Multiple Uses on Same Zoning Lot. Notwithstanding the provisions of Subsection 12-102 G of this Code, more than one principal use or principal structure may be located on one zoning lot in the Techny Overlay District.

E. Transfer of Development Rights ("TDR")

(1) TDR Authorized. Within the Techny Overlay District, the floor area ratio permitted in Subparagraph 9-101 F2 (a) above are bonuses and shall be construed and applied only as a tool in the overall density of development of the property lying within the Techny Overlay district and not as a tool, on any individual zoning lot. The floor area ratio permitted in Subparagraph 9-101 F2(b) establish the maximum density allowable on individual zoning lots, provided however, that these maximum densities are attainable only pursuant to a transfer of development rights pursuant to this Subsection.

SURVEYOR'S CERTIFICATE

STATE OF ILLINOIS)
) SS
COUNTY OF DUPAGE)

TO: NORTH SHORE ICE ARENA, LLC
CHICAGO TITLE INSURANCE COMPANY

THIS IS TO CERTIFY THAT THIS MAP OR PLAT AND THE SURVEY ON WHICH IT IS BASED WERE MADE IN ACCORDANCE WITH THE "MINIMUM STANDARD DETAIL REQUIREMENTS FOR ALTA/ACSM LAND TITLE SURVEYS," JOINTLY ESTABLISHED AND ADOPTED BY ALTA AND NSPS IN 2005, AND INCLUDES ITEMS 1, 2, 3, 4, 8, 9, 10, 11(a), 11(b), 13, AND 16 OF TABLE A THEREOF. PURSUANT TO THE ACCURACY STANDARDS AS ADOPTED BY ALTA AND NSPS AND IN EFFECT ON THE DATE OF THIS CERTIFICATION, UNDERSIGNED FURTHER CERTIFIES THAT IN MY PROFESSIONAL OPINION, AS A LAND SURVEYOR REGISTERED IN THE STATE OF ILLINOIS, THE REALPINE POSITIONAL ACCURACY OF THIS SURVEY DOES NOT EXCEED THAT WHICH IS SPECIFIED THEREIN.

GIVEN UNDER MY HAND AND SEAL THIS 30TH DAY OF DECEMBER, A.D., 20 07.

Juliana L. Peniska

JULIANA L. PENIOKA
ILLINOIS PROFESSIONAL LAND SURVEYOR NO. 35-3034
MY LICENSE EXPIRES ON NOVEMBER 30, 2007.
V3 COMPANIES OF ILLINOIS, LTD. PROFESSIONAL DESIGN FIRM NO 184000803
THIS DESIGN FIRM NUMBER EXPIRES APRIL 30, 2009.

Engineers Scientists Surveyors
7325 Janes Avenue, Suite 100
Woodridge, IL 60517
630.724.9200 voice
630.724.0384 fax
v3co.com

PREPARED FOR:
NORTH SHORE ICE ARENA, LLC
P.O. BOX 477
WILMETTE, IL 60091

REVISIONS		
NO	DATE	DESCRIPTION

ALTA/ACSM LAND TITLE SURVEY
PART OF TECHNY LOT EC-2, NORTHBROOK, ILLINOIS

FILE NAME: ALT8904EC-3C	DRAWN BY: MLP	CHECKED BY: CMB	DRAFTING COMPLETED: 10-25-07
JOB DIRECTORY: 8904EC2.NS	PROJ. MAN.: MLP	SCALE: 1" = 50'	FIELD WORK COMPLETED: 10-24-07

Project No: 8904EC2.NSIA
Group No: V01.1
SHEET NO. 1 of 1